

Torizon Subscription Service Level Agreement

DATED: October 14, 2022.

This Service Level Agreement (also known as SLA or “**Agreement**”) applies in addition to the “**Terms of Services for Torizon Platform**” for Users of commercial subscriptions of the Torizon portal (app.torizon.io).

Words in this Agreement may have a specified definition, which can be found in the last section of this Agreement.

1. Purpose and Scope.

This Agreement applies to commercial subscription plans for the Torizon Platform Services (“**Services**”). This is a binding Agreement between you and Toradex AG, Ebenaustrasse 10, 6048 Horw, Switzerland (“**Toradex**”).

If entering into this Agreement on behalf of a company or other legal entity, you represent that you have full authority to bind such entity to this Agreement.

This Agreement does not apply to free-of-charge subscription plans of the Torizon Platform.

2. Service Level.

a. Services Availability. Toradex make all reasonable efforts to ensure maximum availability of the Services. Toradex warrant that the Services will be available for a minimum of 99% of the time on an annual basis (“uptime”), conversely referred to as a maximum of 1% “downtime”.

b. Downtime Credits. If Toradex fail to meet our uptime warranty for the Services, Toradex will credit you with 5 times the amount paid for the Service subscription only, pro-rata for the time while the Services were unavailable (“downtime”). Credits for downtime of the Services will be calculated monthly and credited towards your next payment cycle. Toradex will not provide cash refunds.

The maximum credit for downtime is limited to the price for a full month’s worth of the Services. Therefore, the maximum monthly credit value will be the annual contract value divided by 12 which will serve as credit for a maximum monthly downtime of 6 days.

c. Notification. To be awarded with the credits for downtime, you must notify Toradex within 10 days from the end of the unavailability of our Services by posting an incident

report (see “Support” below). Incidents must be confirmed by Toradex for downtime credits to be applied.

d. Exclusions. Downtime of the Services due to planned maintenance or force majeure is not counted in the uptime calculation. Also excluded from Toradex’s warranty is failure or unavailability on the User’s side including, but not limited to, connectivity issues, incorrect use, provisioning faults, misconfiguration of devices, malfunctions, shutdowns and/or abuse of the Services.

3. Planned Maintenance.

Toradex perform maintenance work to continually improve the Service. This is necessary to deploy security and functional updates software patches and/or server maintenance/upgrades. Toradex will communicate any planned maintenance at least 48 business hours’ in advance to the email address specified in your account.

4. User Responsibilities & Market Referrals.

To efficiently utilize the Service, the Users are solely responsible for ensuring that the devices, and the necessary software, are up-to-date, installed and configured correctly. The Users are solely responsible for testing devices and software prior to deploying them to a production environment.

You also hereby agree to:

- Allow Toradex to use your company name and logo for promotional/marketing activities.
- Provide Toradex with User testimonials for use in press releases, client references and/or case studies.
- Ensure availability to join Toradex in up to three (3) in-person testimonials with potential clients.

If there are any concerns with above, please inform Toradex via marketing@toradex.com.

5. Support.

Technical Support. Any requests for support using the Services must be posted online at <https://community.toradex.com>.

Incident Reports. Any failures or incident reports with the Services must be posted via <https://community.toradex.com>. The incident must be reproducible and described in detail. The filing of an incident report is necessary to claim any downtime credits from Toradex.

Response Time. The response time to support and incident requests is up to 48 business hours.

Resolution and Closure. Toradex aims to resolve any issues as soon as possible so that you can use the Services without issue. Toradex reserves the right to determine that an issue is outside of the scope of the Services.

6. Prices and Payment.

a. Subscription. The Service subscription is valid for one year, unless explicitly stated otherwise. An invoice will be provided at the commencement of each subscription cycle for which full payment is due within 15 days from date of invoice. Prices are determined by the number of devices, the duration and type of subscription. If full payment has not been received within 15 days from the invoice date, invoices will be deemed as overdue. Overdue invoices accrue interest at a rate of 1.5% per month until full payment is received. Any part of a month will be calculated as a full month, irrespective of duration. Toradex may claim reimbursement of additional collection expenses and reserve the right to suspend the Services if an invoice is overdue for more than 30 days.

b. Trial Subscription. A trial subscription is valid for 90 days free-of-charge. The trial subscription will automatically convert to a commercial subscription after the 90-day trial period unless terminated within this period.

c. Price Changes: The prices for subscriptions are as indicated on the invoice and are valid for the subscription period only. Toradex reserves the right to change the prices at any time with thirty (30) days' advanced notice, in writing.

d. Payment. Payment for the Service will be via electronic transfer to a bank account specified by Toradex. You are responsible for all taxes, bank fees, and other charges associated with this Agreement.

7. Term and Termination.

This Agreement remains in effect until terminated.

Either Party may terminate this Agreement with a minimum of 30 days' advance notice, in writing.

Either Party may terminate this Agreement, with immediate effect, if a) the other Party is in material breach of this Agreement and fails to remedy such breach within 30 days' written notice; b) the other Party becomes insolvent; or c) the other Party is unable to pay its debts.

Upon termination, the Services are deactivated and all data permanently deleted without further notice.

8. Modifications.

Toradex may update, modify, or replace (collectively referred to as "change") this Agreement from time to time. The continued use of the Services by you after any change shall mean you accept and agree with the change. Toradex will post updates of this Agreement on our website, via the Torizon portal and/or make them available through other communication channels (i.e. email to the nominated contact person for your account).

9. Definitions.

"Agreement" shall mean this service level agreement.

"Party", "party" shall mean either You or Toradex.

"Service", "Services" shall mean the subscription plans of the Torizon platform made available to you.

"Toradex", "We", "we", "us" or "our" shall mean Toradex AG, Ebenaustrasse 10, CH-6048 Horw, Switzerland.

"User", "Users", "user" or "users" shall mean any individual or collectivity of individuals, including you, accessing and using the Services, and, if you access the Services on behalf of a corporation or other legal entity, you and such corporation or other legal entity on whose behalf you access the Services.

"You", "you" or "your" shall mean a business accessing and using the Services.